

Court No. - 3

Case :- WRIT - C No. - 25762 of 2021

Petitioner :- Chandra Prakash Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohd. Ishraque
Farooqui

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Sri Udit Chandra, counsel for the respondents no. 2 to 4, prays for and is granted five days' time to obtain written instructions.

As prayed by counsel for the petitioner, put up this case, as fresh, on 28.11.2021.

Order Date :- 21.10.2021

Puspendra

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Counsel for Petitioner :- Mohd. Ishraque Farooqui

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Syed Aftab Husain Rizvi, J.

Heard learned counsel for the petitioner and Sri Udit Chandra, learned counsel for respondent nos.2, 3 & 4.

The grievance of the petitioner is against the demand notice dated 18.07.2019 arising from alleged incorrect bill.

Learned counsel for the respondent nos. 2, 3 & 4 states on instructions that the petitioner may submit an objection under paragraph no.6.5 of the U.P. Electricity Supply Code, 2005 before the respondent no.3 which shall be considered by the respondent no.3 and an appropriate order in accordance with law shall be passed within time bound period.

In view of the aforesaid and without expressing any opinion on the merits of the case of the petitioner, this writ petition is ***disposed of*** giving liberty to the petitioner to submit a representation/ objection under paragraph no.6.5 of U.P. Electricity Supply Code, 2005 within two weeks from today along with a certified copy of this order and in the event such an objection/representation is made by the petitioner within the stipulated period, the same shall be considered and be decided in accordance with law by the respondent no.3, expeditiously preferably within next three weeks, after affording reasonable opportunity of hearing to the petitioner. The impugned demand notice shall abide by the decision as may be taken by the respondent no.3.

For a period of five weeks or till the decision is taken by the respondent no.3 whichever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned demand notice dated 18.07.2019, provided the petitioner deposits a sum of Rs.50,000/- within a week from today.

Order Date :- 4.12.2021

C. MANI